

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

FILED

MAR 03 2025

MANATEE COUNTY
CLERK OF COURT
DEB RYAN

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs,

Case No.: 2025-CC-000715DX

GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

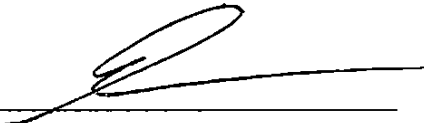
**DEFENDANT'S MOTION FOR COURT TO DETERMINE ACTUAL AMOUNT OF RENT TO
BE PLACED IN REGISTRY**

Comes now THE DEFENDANT: George Edward Yeske III who moves the Court to determine how much, if any money claimed by Plaintiff should be placed in the Court Registry pending trial.

1. The Plaintiff's are claiming back rent damages of \$1,732.00 for the months of January and February of 2025.
2. The Plaintiffs know that the property was completely vacated in late 2024 after it was condemned and determined by both FEMA and the City of Palmetto Building Department, a letter reflecting that is attached to the Defendant's answer to the Plaintiff's complaint and is also attached hereto.
3. Title to that property was turned over the Park on December 31, 2024.

WHEREFORE: The Defendant requests the Court enter an order allowing the Defendant proceed without having to place alleged past due rents in the court registry since none is due as a result of Florida 83.63 which states:

[83.63 Casualty damage.—If the premises are damaged or destroyed other than by the wrongful or negligent acts of the tenant so that the enjoyment of the premises is substantially impaired, the tenant may terminate the rental agreement and immediately vacate the premises. The tenant may vacate the part of the premises rendered unusable by the casualty, in which case the tenant's liability for rent shall be reduced by the fair rental value of that part of the premises damaged or destroyed. If the rental agreement is terminated, the landlord shall comply with s. 83.49(3)]

 Date: March 3, 2025

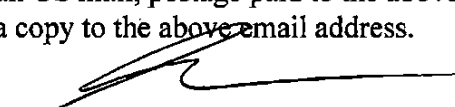
George E. Yeske
14382 O'Neal Rd
Gulfport, MS 39503
702-466-3954

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing action has been served on Plaintiff's claimed Attorney at the below postal address and email:

WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West Bradenton,
Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com Attorney for
Plaintiff

I certify that on March 3, 2025 I placed a copy of this document un US mail, postage paid to the above address and further emailed a copy to the above email address.


George Yeske